

25LBCV01828 25LBCV01828

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-03

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On 8/06/26, the Court heard Defendant's motion to compel responses to RPDs, FROGs, and SROGs. The Court deemed the motion moot, imposed sanctions, and provided the parties advice about this hearing as follows:

The Court notes that Defendant has a motion to deem RFAs admitted scheduled for 9/03/26. Plaintiff's opposition addressed this motion also, though it is not before the Court at this time. The Court asks the parties to work together to resolve the issues relating to the motion without the need for a hearing. Plaintiff is admonished that, per §2033.280(c), sanctions are ABSOLUTELY mandatory in connection with a motion to deem RFAs admitted, and there is no good cause or substantial justification carve-out in the statute.

Any opposition to this motion was due on or before 8/21/26. Plaintiff's attorney filed an untimely declaration in opposition to the motion on 8/25/26. To the extent the Court is considering the grossly untimely opposition declaration, it does not change the analysis. Sanctions are absolutely mandatory. There is no provision permitting an exception when Counsel ceases communicating with Client, especially if Counsel has not communicated that breakdown to the other party when responses to outstanding discovery were due.

Counsel asks that the hearing on the motion be continued so Counsel can seek to withdraw. No motion to be relieved has been reserved or filed. The Court will not continue the hearing indefinitely, and it does not appear continuing the hearing would change the

ultimate ruling on the motion, as Counsel was responsible for the failure to substantively respond (or, at minimum, communicate with Defendant about problems locating Plaintiff) in a timely manner. The request for a continuance is denied.

The Court imposes the requested sanctions of \$1010 against Plaintiff and Counsel, jointly and severally. Sanctions must be paid within twenty days.

Defendant is ordered to give notice.